

26CMCV01155 26CMCV01155

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-02

Motion: DEFENDANT'S DEMURRER TO THE COMPLAINT

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Case Number: 26CMCV01155 Hearing Date: September 2, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CARSON DOMINGUEZ PROPERTIES L.P.,

Plaintiff,

vs.

EVOLECTRIC,
INC.,

Defendant.

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CASE NO: 26CMCV01155

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER TO THE COMPLAINT

Dept.

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DATE:

September 2, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 07/01/2026

TRIAL:

None set

MOVING

PARTY: Defendant Evolectric,
Inc.

RESPONDING

PARTY: Plaintiff Carson Dominguez
Properties L.P.

1. Background

This is an unlawful detainer action. Plaintiff Carson Dominguez Properties L.P. ("Plaintiff") alleges that it is the owner of the property located at 2121 Paulhan St., Rancho Dominguez, California 90220 (the "Property"). Plaintiff alleges that it leased the Property to defendant Evolectric, Inc. ("Defendant"), but that Defendant failed to vacate the Property or pay rent after service of a three-day notice to pay rent or quit.

2. Discussion

Defendant

demurs to the complaint on the grounds that the notice to pay rent or quit was defective. Defendant contends that the notice contains late fees, which are not permitted to be included in a notice to pay rent or quit. In opposition, Plaintiff contends that late fees may be included in a notice to pay rent or quit.

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demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra,

147 Cal.App.4th at p. 747.)²

The ultimate

facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged.³ (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

Defendant

contends that late fees may not be included in a notice to pay rent or quit, citing 360 So Reeves, LLC v. Dutton (2026) 119 Cal.App.5th Supp. 1, 342 Cal.Rptr.3d 579; Del Monte Properties & Investments, Inc. v. Dolan (2018) 26 Cal.App.5th Supp. 20; and Heffesse v. Guevara (2025) 108 Cal.App.5th Supp. 74. However, none of these cases support Defendant’s proposition.

In 360 So

Reeves, the court stated that a three day notice that includes a late fee in the past-due rent calculation is an overstatement of rent. (360 So Reeves, supra, 342 Cal.Rptr.3d at p. 585, emphasis added.) The court did not find that any inclusion of a late fee in the three-day notice was an overstatement of rent. In Del Monte Properties, the court found that the late fee included in the three-day notice was invalid and that the notice therefore was invalid because it included an invalid late fee, not that the notice was invalid because it included a late fee at all. (Del Monte Properties, supra, 25 Cal.App.5th Supp. at pp. 24-25.) In Heffesse, like in 360 So Reeves, the court found that inclusion of a code enforcement fee in the past-due rent calculation in the notice overstated the amount of rent. (Heffesse, supra, 108 Cal.App.5th Supp. at pp. 82-83.)

By contrast,

Defendant cites to Bevill v. Zoura (1994) 27 Cal.App.4th 694, in which the court stated that a three-day notice may include any sums due under the lease and is not limited to solely demanding rent. (Id. at p. 697, fn. 1.) Plaintiff contends that Bevill is inapposite because it concerns

common area maintenance fees, not late fees; however, the court's statement is clearly not limited to common area maintenance fees, as it refers to "any sums due under the lease," not only specific fees.

There is no indication that the three-day notice to pay rent or quit included in the complaint overstates the amount of rent owed, as Defendant contends. The court will therefore overrule Defendant's demurrer to the complaint.

3. Conclusion

Based on the foregoing, the court OVERRULES Defendant's demurrer.

Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: September 2, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court